ARNOLD KOMBO (NO.)

And

GERALD KOMBO

versus

RUGARE MANDIMA (NO.)

AND

THE MASTER OF HIGH COURT (N.O)

AND

ESTATE LATE WEBSTER KOMBO [Unregistered]

AND

ESTATE LATE PATRICK KOMBO [Unregistered]

AND

ESTATE LATE ISAAC KOMBO [Unregistered]

IN THE HIGH COURT OF ZIMBABWE
MPOKISENG DUBE J
BULAWAYO 03 FEBRUARY 2025 & 20 November 2025

Application for Removal of an Executor Testamentary.

T. Moyo for the 1st and 2nd applicants
S. Musapalika, for the 1st respondent

Introduction.

MPOKISENG DUBE J: Death is a tragic event. Whether those who encounter it transcend into celestial beings or not is a matter for religion and or faith. Besides terminating the existence of a human life in the ordinary sense, it shatters dreams, earthly ideals and all plans so meticulously laid down. The facts of this case so barely lay out the effects of death on the departed and their ideals.

This matter in as much as it exercises one's mind on the tenants of law, it so much speaks to the aspirations of the now deceased, one Annie Kombo, born Kwayedza. *Ex facie* this case record one can glean that she was no ordinary woman. In full understanding of her

own mortality she sought legal counsel. With the aid of counsel, she meticulously executed her last will and testament. It reads in part:

> "I NOMINATE, constitute and appoint the Senior Partner for the time being of the firm DANZIGER & PARTNERS of Gweru or their successors in title or assigns to be the Executor of this my will hereby granting unto him all such power and authority as are allowed by law……"

Having so expressed, she bequeathed her estate in cash to her two daughters Isabel Mugwagwa born Kombo, Chipo Kombo and her granddaughter Memory Kombo. In all probability as a show of her good standing in her church, she bequeathed a substantial amount to the Catholic Diocese of Gweru in cash. She then bequeathed the rest, remainder and residue of her estate "movable or immovable" to her four sons namely; Webster, Frederick Joseph, Patrick and Isaac Kombo in four equal shares.

Further understanding the unpredictability of life, she executed a codicil to the effect that in the event of any of her sons pre-deceasing her, such son's share shall devolve to his children in equal shares. Her intentions could never have been clearer. As fate would have it three of her four sons pre-deceased her. Very tragic indeed. Such is the essence of life. For her part, Annie Kombo could never have imagined that her thoughtful acts could lead to such heated contestation in the courts of law as this matter is testimony today.

NATURE OF THE APPLICATION

This is an application for removal of the 1st respondent, a senior partner for the time being at the law firm Danziger and Partners of Gweru. The 1st applicant is Arnold Dhliwayo suing in his official capacity as the Executor to the estate of his late father Fredy Joseph Dhliwayo who was also known as Frederick Kombo. The 2nd applicant who applied for joinder latter in the proceedings is his younger brother Gerald Dhliwayo suing in his personal capacity. The 1st respondent was appointed per the last will and testament of Annie Kombo, as cited above. The deceased matriarch passed on, on the 6th May 1999. Initially a Mr Edwin Dan Vosloo was appointed as the executor testamentary. He was the was the senior partner of the firm then. He however met his own demise in the year 2004 approximately 4years after his appointment. It took approximately 5 years for the 1st respondent to be appointed to his position in May of 2009. In the intervening period a lot happened in the estate, as the wheel of life was grinding on. For the beneficiaries of the testament their circumstances did not remain static. By

the time of filing this application it was approximately 25 years after the death of Annie Kombo. The estate is still open, not having been wound up.

THE DISPUTE PER APPLICANTS

Applicants contend that the 1st respondent has abdicated his duties and accordingly should be removed from office and someone else be appointed by this court in his stead. They strongly argue that the role of the 1st respondent ought to have been to "administer and distribute" as opposed to administering the estate in perpetuity. They accuse the 1st respondent of failing to draw up a distribution account let alone account to the 2nd respondent, the Master of this court. They equally draw blood from 2nd respondent for failing to supervise and call to order the 1st respondent where he fell short.

Specifically the applicants argue that the estate of their late grandmother comprised of an immovable property known as 43 Harare Road, Clonsilla; Gweru. They argue that since being furnished with the letters of administration about 25 years ago, the 1st respondent has only compiled an Executors Inventory and nothing further to drive the estate towards final liquidation.

They argue further that for the past 25 years the 1st respondent has been leasing out the said immovable property for amounts not known to them and in all likelihood not known to the 2nd respondent. They claim that as a result the property is now badly dilapidated and has lost value.

They argue further that at law the 1st respondent ought to have, in not later than 6 months from the 6th of May 1999, (the day the first Letters of Administration were issued to Mr Vosloo) to have lodged with the 2nd respondent an account showing the administration and distribution plan of the estate. They conclude by contending that, now that the estate has been in limbo for the past 25 years the 1st respondent has fallen foul of the law. They accordingly pray for his removal from office.

THE OPPOSITION PER 1ST RESPONDENT

On the contrary the 1st respondent contends that he has neither been negligent nor abdicated his duties. He argues that the circumstances of this estate are *sui generis* in that it involved minor children who were left vulnerable after the untimely departure of their fathers. He states that his predecessor Mr Vosloo requested for the crucial information of the

beneficiaries in form of death certificates of the late sons of Annie and birth certificates of the grandchildren but failed. He argues that when he assumed his mantle, he faced the same predicament. He liaised with the only surviving son of Annie Kombo, namely Patrick. He at some point also went underground only to resurface after several years. Unfortunately, he also met his death on the 10th May 2021. After encountering all those obstacles as he put them, he only received the said documents in years 2020 and 2021 respectively. All along he contends that he has been administering the estate. He attaches a number of invoices ranging from groceries, school fees, bus fares and upkeep of the landed property 43 Harare Road, Clonsilla; Gweru. He however states that, he could not distribute the estate as he has received instructions from the representative of the majority of the beneficiaries not to distribute the estate but to form a family trust to the benefit of all. In other words, his current mandate as he puts it is to administer the estate in perpetuity.

REPLICATION BY THE APPLICANTS.

The applicants' replication is to the effect that such actions by the 1st respondent do not fulfil the will of their deceased grandmother. They argue that the 1st respondent is now acting as an agent of a certain clique of the beneficiaries, who have assumed the role of his principal. They argue that for that reason he has fallen foul of the Deceased Estates Act and the law in general. They argue further that the moral plea by the 1st respondent to say he cared for the best interests of the minor beneficiaries is hollow. Their argument is that the two of them being the children of Frederick Joseph Kombo, were relegated to the rural home in Maboleni, a place of their maternal origins and forgotten about by the Kombo family, while the rest were taken care of by the estate proceeds until relocated to their grandmother's rural home in Nyanyadzi at a great cost to the estate again. They argue that the estate has always been administered in a manner prejudicial to their interests. They disassociate themselves from those who call for formation of a family trust. They insist on the removal of the 1st respondent and the appointment of the Bishop of the Catholic Diocese, Gweru.

POINTS IN *LIMINE* RAISED

The 1st respondent raised five preliminary points viz:

a) No *locus standii* by the 1st applicant.

Under this point the 1st respondent argues that since the codicil to the last will and testament of Annie Kombo outrightly specified that the ¼ share devolving to Fredy Kombo should accrue to his children in the event of him pre-deceasing her, when that event materialised the estate of Fredy Kombo was skipped. In other words, it has no claim to the estate late Annie Kombo.

The applicants opposed this point arguing that it is only via the estate of their late father that they are entitled to claim.

Tied to the objection of *locus standi* was a further objection that the applicants ought to have cited Rugare Mandima in his personal capacity not in his official capacity because it is him as a person who is sought to be removed.

Counsel for the applicants argued that *Mr Mandima* deposed to an opposing affidavit without stating the capacity in which he does so. That it was argued, cures any prejudice that might have been occasioned to him either in his personal or official capacity. For that reason it was argued that the application can not fail on that basis.

It was further argued for the applicants that Rule 32(11) of the High Court Rules, 2021 provides that no cause or matter shall be defeated by reason of mis-joinder or any non-joinder of any party. In *casu* it was argued that *Mr Mandima* has brought himself to court and answered to the claim of the applicants. It was prayed that for that reason this preliminary objection should fail.

b) Material non-disclosure and dirty hands

It argued further that the 1st applicant did not disclose that he has unlawfully resorted to self help by invading 43 Harare Road, Clonsilla; Gweru before instituting this claim. That is said to have led to a civil suit at Gweru Magistrates Courts under GWGL17/23 which is still pending. For that reason, it was argued that he is non-suited to enjoy audience by this court.

For the 1st applicant it was counter argued that the *persona* before court herein is Arnold Kombo, the executor i.e a juristic person as opposed to the individual Arnold Dzikamai Kombo. It was argued further that the Gweru Magistrates court did not make a finding of fact that indeed Arnold Kombo the individual is guilty of such conduct, but rather stayed its proceedings pending outcome of this matter.

c) Fatally irregular founding affidavit of the 2nd applicant.

It was argued that the founding affidavit of the 2nd applicant is defective as it was filed out of the 5 day period which was stipulated by the court order joining him to the proceedings. This point was not pursued during the oral arguments and I shall not discuss it further.

d) Failure to exhaust domestic remedies in the statute i.e failure to approach the 2nd respondent first.

It was argued that the 1st applicant ought to have utilised the provisions of the Administration of Estates Act [Chapter 6:01] particularly section 117(b) by lodging a complaint with the 2nd respondent to the effect that the executor has failed to perform satisfactorily as required by law or under section (d) that he is no longer suitable to hold office. It was argued further that the applicants had remedies under section 116 and 117 of the said Act.

The respondents argued that they can not rely on the provisions of section 116 and 117 as that would have entailed them first filing a complaint with the same 2nd respondent who has failed to supervise the conduct of the 1st respondent for the past 25 years or so.

e) Incompetent relief i.e appointment of the Archbishop of the Catholic Diocese of Gweru and an executor.

It was argued also that the Archbishop of the Gweru Catholic Diocese is not competent to be appointed an executor as he/she is not registered to perform such duties per law nor is he/she a relative of the deceased.

The applicants insist that the proposed executor would be competent and free from bias.

DISCUSSION OF THE POINTS *IN LIMINE*

Ad *locus standi*

In the matter of *Farina v Master of the High Court and Anor* HH 671-23, my brother Wamambo J citing the matters of *Sibanda v Moyo & Ors* per Makonese J had this to say:

> "In *Tryphine Sibanda* v *Libati Moyo* & Ors HB 51-21 MAKONESE J at pp 3-4 said:
> It is trite that *locus standi* is the capacity for a party to bring a matter before a court of law. The law is clear on the point that to establish *locus standi*, a party must show a direct and substantial interest in the matter.
> See *United Watch & Diamond Company Private Limited & Ors* v *DISA Hotels Ltd & Anor* 1972 (4) SA 409 (C) and *Matambanadz*o v *Goven* SC 23-04.

> It is clear from the circumstance of this case that the applicant is not an executor in the estate of the late James Moyo, Richard Moyo and Knowledge Moyo.
> It is settled law that for a person to have *locus standi* to bring proceedings in any action he must have sufficient personal interest in the matter concerned. Usually only a person who has direct, personal or financial (interest) in the remedy sought has the *locus standi* to seek remedy in court. The personal interest that a person may have will provide the basis for legal standing to bring to court any legal action or cause. Personal interests include personal liberty, monetary claims legitimate expectation in property claims, amongst several other remedies" (My own underlining for emphasis)

He further made the following reference:

> "ZHOU J in *Tanaka Power (Private) Limited* v *Sheriff of the High Court & Ors* HH 518-19 p 2 had occasion to state as follows:
>
> "In the case of *Zimbabwe Teachers Association & Ors* v *Minister of Education* 1990 (2) ZLR 48 (HC) at 52F -53B EBRAHIM J (as he then was) stated the principles as follows:
> "It is settled that, in order to justify its participation in a suit such as the present, a party… has to show that it has a direct and substantial interest in the subject matter and outcome of the subject matter and outcome of the application. In regard to the concept of such a direct and substantial interest CORBETT J in *United Watch and Diamond Company (Pvt) Ltd & Ors* v *Disa Hotels Ltd & Anor* 1972 (4) SA 409 (C) quoted with approved the view expressed in *Henri Viljoen (Pvt) Ltd* v *Awerbuch Brothers* 1953(2) SA 152 (O) that it concerned". (My own underlining for emphasis)

I n the present matter I have no doubt in my mind that the applicants have a direct and substantial interest in the outcome of this application. Such interest is derived via the estate of their late father Fredy Kombo alias Dhliwayo. If the codicil already defined their claim, such ground can not defeat their claim, if anything it fortifies it.

For the 1st applicant standing in as a representative of his late father's estate, he has a direct and substantial interest in the outcome of the mater. It is in that capacity that he can claim their ¼ share and distribute it further to his sibling or to their own children *per stirpes*. I find therefore that he has sufficient *locus standi in judicio* to bring forth this claim as he does.

On the second leg of the argument on whether *Mr Mandima* should have been cited in his personal capacity or in his official capacity I wish to refer to the matter of *Chiangwa v Katerere and 5 Ors* SC61-21 where Chitakunye AJA (as he then was) had this to say:

"A properly appointed executrix cannot simply be ignored or side stepped when dealing with a deceased estate"

While it is desirable to sue the offending executor in his personal capacity for his removal, as opposed to the estate itself I am of the view that in the present matter it is not fatal to the applicant's cause since *Mr Mandima* himself responded to the claim without making the distinction whether he is deposing to an opposing affidavit as an individual or in his official capacity.

Ad Material non-disclosure and Dirty hands.

While it is true that the 1st applicant did not volunteer the information pertaining to confrontations in the Gweru magistrates' court, I find that to be a non-event since the said court did not make any adverse finding against him. The 1st applicant cannot be said therefore to be with dirty hands. If anything, the parties agree that the said court deferred its inquiry to a later date after this court would have pronounced itself. In the circumstances it would be unjust to deny the 1st applicant audience do to such inconsequential non-disclosure.

Failure to exhaust domestic remedies & Incompetent Relief Sought.

I find these preliminary objections to be so closely intertwined with the merits such that it can only be appropriate to discuss them with the merits of the matter.

ANALYSIS OF THE LAW ON THE MERITS

Ad Exhaustion of Domestic Remedies

This application is brought under section 85(1) of the Administration of Estates Act [*Chapter 6.01*] which provides as follows:

"85. **Removal and suspension for cause of executors, tutors and curators**

(1) Every executor, tutor or curator shall be liable to be suspended or removed from his office by order of the High Court or any judge thereof if the High Court or judge is satisfied on motion that, by reason of absence from Zimbabwe, other avocations, failing health or other sufficient cause, the interests of the estate under his care would be furthered by such suspension or removal."

The 1st respondent through his counsel argues that the applicants jumped the gun, that instead they should have proceeded in terms of section 116 and 117 of the same Act.

Section 116 provides as follows:

"**116. Supervision of executors, tutors and curators**

(1) If it appears to the Master that any executor, tutor or curator is failing or neglecting to perform satisfactorily his duties or to observe all the requirements imposed upon him by law or otherwise in regard thereto, or if any complaint is made to the Master by any creditor, legatee or heir in regard thereto, the Master shall inquire into the matter and take such action thereon as he shall think expedient.

Clearly section 116 envisages a situation where the Master of the High court in this case the 2nd respondent takes the initiative of its own motion or at the instance of an interested party.

In casu it is common cause that the Estate Late Annie Kombo was registered with the office of the 2nd respondent under DRB 913/99 since the 6th of May 1999. Of its own accord the 2nd respondent has not done anything to supervise the 1st respondent. Worse still the 2nd respondent has not done anything to show that it had taken notice that the executor has neglected or abdicated its duties. For that reason 2nd respondent has not initiated any inquiry into the conduct of the 1st respondent in over 25 years.

Section 117 being a progression of section 116 provides as follows:

"117**. Master may apply for removal of executor, tutor or curator from office**

(1) The Master may apply to a judge in chambers for the removal of an executor, tutor or curator from his office on the ground—

(a) That he was not qualified for appointment to such office or that his appointment was for any other reason illegal; or By Laws Africa and contributors. Licensed under CC-BY. Share widely and freely. 42 Administration of Estates Act (Chapter 6:01) Zimbabwe

(b) That he has failed to perform satisfactorily any duty or requirement imposed upon him by or in terms of any law; or

(c) That he is mentally or physically incapable of performing satisfactorily his duties; or (d) that in his opinion such person is no longer suitable to hold such office; and the judge may, upon such application, remove the executor, tutor or curator concerned from his office or make such other order as he sees fit.

Needless to say the 2nd respondent having seen no evil in the conduct of 1st respondent for the past 25 plus years could not have taken the initiative to bring forth such an application.

The 1st respondent insists that this is the first port of call which the applicants ought to have pursued.

In the matter of *Chidhakwa v Motsi N.O. & Anor* 2020(2) ZLR 58 (H) my sister Kabasa J had this to say at para F;

> "The applicant in *casu* is in essence saying:
>
> I have looked at s 85(1) of the Administration of Estates Act and it gives you the court the power to remove the executor if I am able to show that the executor is guilty of the transgressions listed therein. So here is my story and my story should persuade you to invoke your s 85(1) powers to remove this person
>
> That right stems from the common law. If the legislature had intended to non-suit any other person except the Master it would have expressly stated so."

The Learned Judge further found persuasion in the provisions of section 69(3) of the Constitution of Zimbabwe, 2013 which creates a right of access to the courts read with section 85(2) which speaks of infringement of fundamental rights. She found that the right to access courts is one such right. I am equally persuaded by such dictum.

If the law does not prohibit the applicants from directly bringing their cause to the court, I find no reason why they should go the long route of first activating the office of the 2nd respondent. I thus dismiss the point argued in *limine* that the applicants ought to first have exhausted domestic remedies under the Act.

At this juncture one may then pause to ask the question;

Has a proper case been made for the removal of the Executor Testamentary**?**

In answer to the above may I refer to section 36 of the Administration of Estates Act *supra* which provides as follows:

> **"Duties of Executors**
>
> 38. Inventory by executor
>
> (1) Every executor shall, so soon as letters of administration have been granted to him in manner aforesaid, forthwith make an inventory showing the value of all property, goods and effects, movable and immovable, of whatever kind belonging to the estate which he has been appointed to administer, and shall in the same manner from time to time thereafter and so soon as he finds or knows of any such property, goods or effects belonging to such estate and not contained in such first-mentioned inventory, make an additional inventory or inventories, showing the value of all such last-mentioned property, goods and effects.

> (2) Every such executor shall forthwith cause every such inventory and additional inventory to be transmitted to the Master *(My own underlining for emphasis)*

What stands out in the above cited provision is that in the conduct of the executor's mandate he shall act "….so soon as… and shall forthwith…"

In the present matter it took the combined efforts of the initial executor Mr Vosloo and the current 1st respondent a whooping 25 years plus. In no way can either of them be said to have acted "forthwith"

Section 52 the Administration of Estates Act further provides as follows:

"52. **Administration and distribution accounts**

> (1) Every executor shall administer and distribute the estate in respect of which he is appointed according to law and the provisions of any valid will relating to that estate.
>
> (2) As soon as may be after the expiration of the period notified in the Gazette in manner hereinbefore in this Act provided, and not later than six months from the day on which the letters of administration were issued to him, or within such further time as the Master may upon sufficient cause being shown allow, the executor shall frame and lodge with the Master an account showing the administration and distribution of the estate up to the date when the account was lodged, together with a true copy of that account. (my own underlining for emphasis)

The key words above are "*shall administer and distribute*" …..in not later than 6 months from the date letters of administration are issued unless good cause is shown and an extension granted by the Master.

In the present matter 25 years down the line the 1st respondent has not distributed the estate. What he claims to be his administration also falls short of transparency. He does not dispute that individuals would just walk up to his office with a list of expenses or requests for cash. He would just pay out without invoices. Neither would he account to the 2nd respondent, the Master. The applicants herein were completely left out as it is not disputed that they were sent away to Maboleni village and forgotten about.

It would seem the 1st respondent had a group of beneficiaries that he associated himself with at the expense of the rest. Such individuals became the principals to the executor which offends against the law.

In the *Chiangwa v Katerere* matter *supra*, it was held, citing the work The Law and Practice of Administration of Estates, 5th Edition by D Meyerowitz @ p 123 as follows:

> "An executor is not a mere procurator or agent for the heirs but is legally vested with the administration of the estate. A deceased estate is an aggregate of assets and liabilities and the totality of the rights, obligations and powers of dealing therewith, vests in the executor, so that he alone can deal with them.
>
> He has no principal and represents neither the heirs nor the creditors of the estate"

In the matter of *Mujuru NO & Ors v Mujuru & Anor* 2006(1) ZLR 164 H it was held that

> "What therefore emerges from a perusal of the sections referred to above is that the primary duty of an executor is to finalise as quickly as possible the administration of the estate"

It was held further that:

> "An executor should therefore consult the beneficiaries, heirs and legatees in any decision involving the administration of the estate."

In the present matter the Catholic Diocese of Gweru has not received its share, neither has the deceased's daughters and their children. The applicants herein are still owed their ¼ share of the estate. It is not a good excuse that the Executor acted from a moral high ground to protect the interests of the minor beneficiaries. Such argument is hollow and self-serving. The Executor is still charging legal fees in perpetuity.

Section 51 of the Administration of Estates Act *supra* is clear on what should happen to value accruing to minors or persons who lack capacity to act on their own, it provides;

> "51**. Executor to pay to Master money devolving upon minors, mentally disordered or defective persons or absent persons**
>
> (1) If any executor in administering and distributing any estate finds that any sum of money has devolved upon or become due from such estate to any minor, mentally disordered or defective person or person absent from Zimbabwe, not having a guardian, tutor, curator or lawful representative within the same, such executor shall forthwith pay such money into the hands of the Master.

The 1st respondent was acting inappropriately to be creative outside the ambit of the enabling Act. I am therefore persuaded that a case for his removal has been made.

Competency of the Relief Sought

It is correct that the office of the Archbishop of the Catholic Diocese of Gweru can not be appointed as an executor. Section 68B subsection 2 (ii) a & b reads as follows

> "68B**. Appointment of executor**

…….

(2) The Master, with the concurrence of the relatives present at a meeting summoned in terms of subsection (1), shall appoint a person to be the executor of the estate of the deceased person referred to in that subsection: Provided that-

(i) if the relatives are unable to agree upon a person to be appointed as executor, the Master shall appoint a person as provided in section twenty-six, which section shall apply, mutatis mutandis, in relation to any such appointment;

(ii) no person shall be appointed as executor under this subsection unless he is-

(a) registered under the Estate Administrators Act [Chapter 27:20]; or

(b) a member of the deceased person's family"

The office of the Archbishop not being a member of the deceased's family nor a registered entity under the Act does not qualify for such appointment.

In the foregoing I make the following disposition.

Disposition

1. The application for removal of the 1st respondent as Executor testamentary in the Estate Late Annie Kombo DRB 913/99 succeeds.

2. The 2nd respondent be and is hereby directed to appoint an independent executor from the list of registered professional Administrators of Deceased Estates filed with its office within 14 days of this order.

3. Such executor shall administer and distribute the said estate within 6 months of its appointment unless good cause for extension is sought from the 2nd respondent and granted.

4. 1st respondent shall pay costs of this suit on an ordinary scale.

Ncube Attorneys, applicants' legal practitioners
Danziger and Partners, 1st respondent's legal practitioners